

PRESENT:

Kgg. Nelson D. Ama
Kgg. Lualhati C. Narvaez
Kgg. Eliseo L. Aurelio Jr.
Kgg. Lota F. Toledo
Kgg. Enriqueta C. Lacson
Kgg. Melvin L. Belan
Kgg. Rommel N. Almendral
Kgg. Florencio A. Ama
Kgg. Dan Paul V. Tarzona
G/Gng. Albert C. Anasao
G/Gng. Macrina B. Guico

Punong Barangay
Barangay Kagawad
Barangay Kagawad
Barangay Kagawad
Barangay Kagawad
Barangay Kagawad
Barangay Kagawad
Barangay Kagawad
SK Chairman
Barangay Secretary
Barangay Treasurer

ABSENT:

NONE

BARANGAY RESOLUTION NO. 05 - 2022

**RESOLUTION APPROVING BARANGAY ORDINANCE NO. 05-2022, "ANTI LITTERING
ORDINANCE OF BARANGAY PLATERO"**

WHEREAS, one of the major causes of respiratory ailments and other related diseases in human beings, especially among infants and children is the polluted and unsanitary condition of our surroundings;

WHEREAS, this is due to a large extent to the public's apparent lack of awareness or the value and importance of cleanliness and sanitation to the health and well-being of our citizenry;

WHEREAS, almost everyday one can observe some people carelessly throwing away cigarette butts, cellophanes, candy/bread wrappers/garbage in other public places which make our surrounding dirty and unsightly to look at aside from becoming a virtual spawning ground of diseases;

WHEREAS, it is about time that the public realize that it is also their duty and responsibility to help keep our surroundings clean and sanitary in order to promote a clean and healthy environment for
all;

NOW THEREFORE, on motion of **Hon.ENRIQUETA C. LACSON**, and duly seconded by **Hon. LOTA F. TOLEDO**, this Body, in an open session assembled **RESOLVES** as it is hereby **RESOLVED** to enact the following the Barangay Ordinance to wit:

**AN ORDINANCE PROHIBITING THE LITTERING OR SCATTERING OR ANTI LITTERING
ORDINANCE OF BARANGAY PLATERO.**

SECTION 1. Title – This Ordinance shall be known as the Anti-Littering Ordinance of Brgy. Platero / Bawal magkalat sa Platero.

SECTION 2. Coverage – This ordinance shall cover the entire Brgy. Platero.

SECTION 3. Prohibition – The Anti-Littering Ordinance prohibits the following acts:

- o Littering, Illegal dumping, Illegal disposal of garbage;
- o Urinating, defecating, spitting in a public place;

- o Illegal posting or installed signage, billboards, posters, streamers and movie ads., etc.

SECTION 4. Participation of concerned Entities – All concerned entities is hereby enjoined to extend their utmost cooperation and contribute their share to ensure the successful implementation of this ordinance.

- a.) Every business establishment is required to put up a trash can or waste box for their solid waste
- b.) Fish, meat and vegetable vendors inside the public market are also required to put up trash cans or waste boxes in front of/ or besides their stalls to be managed and arranged by the market administrator or the association.
- c.) Public Utility vehicles such as jeepneys and tricycles to place a trash or waste box inside their vehicles and terminals;
- d.) The Barangay shall likewise put up trash cans, waste boxes or garbage receptacles in strategic places within the barangay to make easy, convenient and accessible for the public to place or deposit their waste items;

SECTION 5. Creation of a task force – There is hereby created a Task Force with the primary task of apprehending violators of this Ordinance. It may also recommend measures that may be useful for the proper and efficient enforcement of this Ordinance. Violators shall be charged for fines, and in the event they refuse the corresponding penalty, they shall be reported immediately to the Barangay Chairman for appropriate action;

SECTION 6. Composition of the task force – The task force shall be composed of the following:

Barangay Chairman
Committee on Environment Health and Sanitation
Committee on Market Matters
Committee on Peace and order & Safety
Administrators
Police / POSO
BHW / BWCCD / LERU / TANOD
All Homeowners Association
All Peace and Order Volunteers
All Organization acknowledged of Barangay Platero

The Team Leader of the Task Force shall be the Punong Barangay. He shall regularly checkup his members to make sure they are diligently and efficiently performing their assigned task. In the event a member of the Task Force is found to be remiss in his duty, the Committee shall report the same to the Punong Barangay for appropriate action.

SECTION 7. Period of the Existence of the Task Force. - The task Force shall cease to exist three (3) months after the effectivity of the ordinance, subject to extension when exigency of their service so warrants with approval. However, its composition may be reduced if there are encouraging and positive signs that the public is complying with the provision of this Ordinance.

SECTION 8. Funding – To carry out the provision of this Ordinance, the amount of P30,000 shall be taken from any available appropriation for supplies and materials for the acquisition of trash cans, waste boxes or garbage receptacles and for the posting of this Ordinance in billboards in strategic and conspicuous places within the community.

SECTION 9. Penal Provision

01	Illegal disposal of garbage	P500.00	8 hours (1 day)
02	Urinating, defecating, spitting in a public place	P500.00	8 hours (1 day)
03	Dirty frontage and immediate surroundings for establishment owners	P1000.00	16 hours (2 days)
04	Improper and untimely stacking of garbage outside residence or establishment	P500.00	8 hours (1 day)
05	Obstruction (any dilapidated appliance, vehicle, and etc., display of merchandise, illegal structure along sidewalk)	P1000.00	16 hours (2 days)
06	Dirty public utility vehicles, or no trash can or receptacle	P500.00	8 hours (1 day)
07	Spilling, scattering, littering of wastes by public utility vehicles	P500.00	8 hours (1 day)
08	Illegal posting or installed signage, billboards, posters, streamers and movie ads., etc.	P1000.00	16 hours (2 days)

b.) In the event that the violator is caught by any agencies of the barangay or, any of the implementing officers, fifty percent (50%) of the fine shall accrue to their agencies for their department fund, or the community service rendered right in the said agencies, Provided, however, that income derived out of the enforcement of the ordinance shall be utilized exclusively for clean and green program.

c.) Any Person who shall interfere with or hinder or oppose any officer or member of the task force in the performance of his duty any billboard or notice displayed in the premises in the steal or cart trash cans, waste boxes or garbage receptacles used in the implementation of the ordinance shall be guilty of misdemeanor and punishable upon conviction by a fine of not exceeding Php5,000.00 or an imprisonment not exceeding six (6) months or both depending upon discretion of the court.

SECTION 10. Exemption – Except as otherwise provided in this ordinance, the following person shall be exempted from the coverage of this Ordinance, specifically on the penal provision.

- a.) Person who are mentally sick, retarded and those showing signs of having mental disturbances.
- b.) Children below six (6) years old, however, if the child is accompanied by an adult the latter shall be held responsible and accountable if he/she does not retrieve the waste items scattered or thrown away by his/her ward.
- c.) Children from 6 to 12 years old caught violating this ordinance shall be apprehended and brought to the Barangay Captain, or in his absence, to any Barangay Kagawad and their parents shall be notified and summoned immediately for a conference/lecture on the value and importance of cleanliness and sanitation, personal discipline and the need to comply with the provisions of the ordinance. The offending minor shall not be released without the presence of his/her parents or guardian.

SECTION 11. Repealing Clause – All Ordinances, Resolutions or Issuances which are inconsistent with the provisions of this Ordinance are hereby repealed, amended or modified accordingly.

SECTION 12. Effectivity – This Ordinance shall take effect after the approval of the Sangguniang